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Case Number: 24LBCV01604 Hearing Date: August 20, 2026 Dept: S28

BACKGROUND

On August 1, 2024, Plaintiffs commenced this action against Defendants Catalina Island Vacation Rentals, Inc. ("Catalina") and Daniel Evan Encell alleging general negligence and negligence per se arising out of a golf cart collision.

On September 16, 2025, Defendant Catalina filed a cross-complaint against Anthony Goree and Daniel Encell for indemnification, declaratory relief, and apportionment of fault.

On April 24, 2026, Defendant Catalina filed the instant Motion.

On May 15, 2026, Defendant Catalina filed an ex parte application for leave to amend the cross-complaint. Plaintiff filed opposition to the ex parte application and Defendant filed a reply that same day. On May 18, 2026, the Court denied the ex parte application finding no exigent circumstances.

On June 23, 2026, Plaintiffs filed opposition to the noticed motion.

As of August 18, 2026, Catalina has not filed a reply in support of the noticed motion.

DISCUSSION

Applicable Law

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (C.C.P. §473(a)(1).)

"Trial courts are vested with the discretion to allow amendments to pleadings 'in furtherance of justice.' That trial courts are to liberally permit such amendments, at any stage of the proceeding, has been established policy in this state since 1901." (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 488-489.)

CRC Rule 3.1321(a) requires that a motion to amend must: “[i]nclude a copy of the proposed . . . amended pleading . . . [and] state what allegations in the previous pleading are proposed to be [deleted and/or added], if any, and where, by page, paragraph, and line number, the [deleted and/or additional] allegations are located.”

CRC Rule 3.1324(b) provides, as follows: “[a] separate declaration must accompany the motion and must specify: (1) [t]he effect of the amendment; (2) [w]hy the amendment is necessary and proper; (3) [w]hen the facts giving rise to the amended allegations were discovered; and (4) [t]he reasons why the request for amendment was not made earlier.”

Analysis

Cross-Complainant moves for leave to file a first amended cross-complaint substituting Textron Specialized Vehicles, Inc. for ROE 1, Buffalo Motors for ROE 2, Lora Goree for ROE 3, Francine Rios for ROE 4, and 1550 Vineyard Drive LLC for ROE 5. Movant contends that the proposed amendment is timely, relates back to the original action, will not prejudice the parties, will cause harm to Movant if denied, and is in the interest of justice. Movant states that it retained new counsel on December 30, 2025 and following further discovery and subsequent investigation, Movant's new counsel ascertained information related to other parties to be included in the Cross-Action. (Hampton Decl. ¶¶ 2-3.)

Specifically, Textron Specialized Vehicles, Inc. and Buffalo Motors were identified as the manufacturer and maintenance technician of the golf cart that caused the injuries alleged in the Original Action. (Hampton Decl. ¶¶ 2-3; Okunor Decl. ¶¶ 3-4, Exhs. A and B.) Buffalo Motors was identified as the company to whom Cross-Complainant took the subject golf cart for periodic maintenance and repairs. (Hampton Decl. ¶ 2.) Movant contends that Lora Goree and Francine Rios were in breach of several sections of the Binding Golf Cart Agreement by failing to operate the golf cart safely. (Okunor Decl. ¶ 5, Exh. C.) 1550 Vineyard Drive LLC was identified as the owner and insurer of the golf cart that Plaintiffs allege caused the injuries that upon which the Original Action is based, and Movant alleges that it failed to include Movant as an additional insured under the liability policy and related umbrella policy in effect at the time of the alleged injury causing event upon which the Original Action is based. (Okunor Decl. ¶ 6, Exh. D.)

In opposition, Plaintiffs point out that Movant does not submit any declarations with detailed facts explaining exactly what “new” information was discovered, when it was discovered, or why the late addition of any of these new parties is warranted. (Moore Decl., ¶ 9.)

As to the substance of the motion, Plaintiffs argue that the identities and involvement of all five (5) proposed new parties were known to it long before counsel claims to have discovered them during depositions: Defendant CIVR has had possession of the golf cart since the incident, knew which company serviced it, had the rental management agreement with 1550 Vineyard Drive LLC since November 2021, and was a party to the Golf Cart Agreement with Lora Goree since October 2022. (Moore Decl., ¶ 5.) Plaintiffs contend that there is no new information that recently came to light that would justify the late addition of five (5) parties.

Plaintiffs also argue that they would be severely prejudiced as granting this Motion on the eve of trial would devastate Plaintiffs, who have already endured two continuances and completed ten (10) depositions, the golf cart inspection, and extensive written discovery. The interests of justice compel denial. (Moore Decl., ¶¶ 4-14.)

Here, Cross-Complainant's motion does not comply with CRC Rule 3.1324(a). The motion includes a copy of the proposed FAXC, but Cross-Complainant does not set forth the allegations proposed to be added and deleted, and where, by page, paragraph, and line number. Cross-Complainant's motion is similarly not in compliance with CRC Rule 3.1324(b). Cross-Complainant's counsel's declaration does not specify the effect of the amendments or explain why the amendments are necessary and proper. Cross-Complainant's counsel also fails to state when the facts giving rise to substantive amended allegations were discovered and why the request for amendment was not made earlier.

As to the substance of the Motion, it is clear that the identities of the proposed cross-defendants were, or should have been, known to Cross-Complainant long before filing the Cross-Complaint, as set forth in Plaintiffs' opposition:

1. Textron Specialized Vehicles, Inc. and Buffalo Motors: Defendant CIVR owned and possessed the golf cart at all material times. It was responsible for having the cart serviced at Buffalo Motors. Additionally, the manufacturer's identity was ascertainable from the cart itself by simple inspection. Defendant CIVR claims these identities were revealed only through depositions, but Defendant CIVR did not need a deposition to look at its own golf cart or check its own maintenance records. (Moore Decl., ¶6.);

2. 1550 Vineyard Drive LLC: Defendant CIVR itself was a party to the "Exclusive Vacation Rental Management Agreement HC" with 1550 Vineyard Drive LLC the very document they now cite signed on November 10, 2021. Defendant CIVR drafted and possessed that agreement when it filed its Cross-Complaint in September 2025. (Moore Decl., ¶ 7.)

3. Lora Goree and Francine Rios: Defendant CIVR has had the signed Binding Golf Cart Agreement, bearing Lora Goree's signature dated October 20, 2022, since at least the commencement of this action. These parties' identities and the terms of the contract were never hidden. Defendant CIVR cannot credibly claim it only "discovered" grounds for a breach of contract claim against Plaintiff Lora Goree on April 15, 2026, when it had the signed agreement in its own files for years. (Moore Decl., ¶ 8.)

(Opp., p. 6.)

Further, Movant conceded in its reply in support of the ex parte application that it "cannot tell Plaintiffs' 'why' the additional parties were not previously included because Movant has changed counsel since the filing of the initial Cross-Complaint. It is well settled, however, that certain aspects of litigation fall within counsel's purview and any penalties for noncompliance or failure by counsel should not adversely affect a party's cause of action or defense. Cal. Code Civ. Proc. sec. 575.2." (Reply, p. 6.) This argument is unavailing. Plaintiffs would be greatly prejudiced by this amendment made so late in litigation without any justification for the delay. Judicial policy generally supports the resolution of all disputed matters between parties, leave to amend or leave to cross-complaint is typically granted liberally. (See *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) The Court may, however, deny such leave if there is demonstrated prejudice to the opposing party, such as trial delays, loss of critical evidence, or increased preparation costs. (Id.) Plaintiffs point out that this case has been in litigation for nearly two (2) years and trial is set for October 19, 2026. It has already been continued twice once via stipulation and once via ex parte application on behalf of the defense which Plaintiffs opposed. (Moore Decl., ¶ 10.) Adding five new parties two months before trial in a case that is over two years old would prejudice Plaintiffs by causing trial delays and increased preparation costs. Movant fails to justify such prejudice.

CONCLUSION

Defendant Catalina Island Vacation Rentals, Inc.'s Motion for Leave to File Cross-Complaint is DENIED.